

TERMS OF ENGAGEMENT

HR Consulting Services

This document records the standard terms on which Bird & Yang provides HR consulting and workplace support services. These terms should be read together with any proposal, disclosure statement, service schedule, written scope, or other written instructions we agree with you.

Client information

Information	Details
Client / entity name	
Business structure	
Contact person and role	
Email address	
Phone / mobile	
Physical address	
Number of employees	
HR support required	
Urgent deadlines or existing disputes	

Purpose and scope

These Terms of Engagement record the standard terms on which Bird & Yang provides HR consulting and workplace support services. They should be read together with any proposal, service plan, project scope, or written instructions we agree with you.

Our services are consulting and business support services. They are not legal advice, representation in any court, tribunal, or authority, or a substitute for advice from a lawyer where legal advice is required.

Services we may provide

- HR policy and procedure support;

- employment documentation support, including templates and workplace forms;
- performance management, restructuring, disciplinary, and grievance process support;
- recruitment, onboarding, training, employee communication, and workplace culture support;
- general compliance guidance relating to employment relations, workplace privacy, and health and safety risk management within the agreed scope.

Client responsibilities

You remain responsible for making all employment, management, operational, disciplinary, restructuring, and workplace decisions. You must provide complete and accurate information and promptly tell us about any material fact, dispute, risk, deadline, or existing legal process.

You are responsible for meeting employer obligations, consulting employees where required, keeping appropriate records, and obtaining legal advice where a matter involves legal rights, litigation, termination risk, or material employment dispute risk.

Limitations

We do not guarantee that a particular HR outcome, employment outcome, employee response, business result, or dispute resolution outcome will be achieved.

Unless expressly agreed, we do not provide legal representation, mediation representation, medical advice, psychological advice, workplace investigation findings, audit assurance, or health and safety certification.

Confidentiality and employee privacy

HR consulting often involves sensitive personal, employment, performance, health, disciplinary, or workplace information. You must ensure you have authority to provide information to us and that information is collected, used, stored, and disclosed in accordance with applicable privacy and employment obligations.

We will handle information confidentially and only use or disclose it for the agreed services, related administration, compliance, or where required or permitted by law.

Fees and timing

Fees, fixed project costs, hourly rates, retainers, disbursements, and third-party costs will be set out in our proposal, service agreement, or written confirmation. If the scope changes or urgent additional work is required, additional fees may apply.

We will use reasonable efforts to meet agreed timeframes, but timing may depend on your instructions, availability of documents, employee consultation requirements, and third-party processes.

Referral to legal or specialist advisers

Where a matter requires legal advice, employment advocacy, licensed professional advice, specialist health and safety advice, or another professional service, we may recommend that you obtain advice from B&Y Legal or another appropriate adviser under separate engagement terms.

Termination

Either party may terminate the engagement by written notice. Termination does not affect accrued fees, confidentiality, privacy, intellectual property, record-keeping, or liability provisions.

Acceptance

By signing below, the client confirms that they have read, understood, and accepted these Terms of Engagement for HR Consulting Services. If signing for a company, trust, partnership, organization, or another person, the signatory confirms that they have authority to do so.

Client / Entity name	
Authorized signatory name	
Position / capacity	
Signature	
Date	

Contact

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